

The Slum Areas (Improvement And Clearance) Rules, 1957

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[Rule THE-SLUM-AREAS-IMPROVEMENT-AND-CLEARANCE-RULES-1957 of 1957](#)

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[The Slum Areas \(Improvement And Clearance\) Rules, 1957](#)

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[22.](#)

[/996](#)

[In exercise of the powers conferred by section 40 of the Slum Areas \(Improvement and Clearance\) Act, 1956 \(96 of 1956](#)

[\), the Central Government hereby makes the following rules, namely:--](#)

[1.](#)

[Short title](#)

[.-These rules may be called The Slum Areas \(Improvement and Clearance\) Rules, 1957.](#)

[2.](#)

Definitions

.-In these rules--

(a)

"Act" means the Slum Areas (Improvement and Clearance) Act, 1956 (96 of 1956

);

(b)

"Form" means a Form appended to these rules.

3.

Forms of notices

.-Notices issued under the Act shall be in the appropriate Form appended to these rules.

4.

Authentication of notices

.-Every notice issued by the competent authority under the Act shall be signed either by the competent authority or an officer authorised in this behalf by the competent authority and notices shall be deemed to be properly signed if it bears a facsimile of the signature of that authority or officer.

5.

Authentication of order and other instruments

.-Every notice issued by the competent authority under the Act shall be signed either by the competent authority or an officer authorised in this behalf by the competent authority and notices shall be deemed to be properly signed if it bears a facsimile of the signature of that authority or officer.

6.

Plan for re-development

.-Every plan for the re-development of any slum area shall include the following, namely:--

(a)

description of the properties proposed for acquisition;

(b)

description of the properties which may fit in the re-development plan either in their present form or after carrying out certain additions, alterations or improvement; the latter case the additions, alterations or improvements to be made;

(c)

roads, open spaces and site or sites for schools, hospitals, shopping centres, maternity and child welfare centres and similar amenities.

[6-A. Form of application under section 6-A and fees therefor

[Inserted by S.O. 1334, dated 13.4.1973.]

.- (1) An application under sub-section (3) of section 6-A of the Act shall be made in Form AA.

(2)

The fees to be levied in respect of every such application shall be Rs. 10.]

7.

[Form of application under section 19 and fees therefor

[Substituted by S.O. 1334, dated 13.4.1973.]

.- (1) An application under sub-section (2) of section 19 of the Act shall--

(i)

where such application relates to the grant of permission to institute a suit or proceeding for the eviction of a tenant, be made in Form CC; and

(ii)

where such application relates to the grant of permission to execute a decree or order of copies of relevant documents and in the case of.

(2)

The fees to be levied in respect of every such application shall be Rs. 10.

(3)

Every such application shall be accompanied by copies of relevant documents and in the case of an application for grant

of permission to execute a decree or order of eviction of a tenant, also by a copy of the decree or order.

7.

-A. Procedure to be followed by the competent authority

-(1) On receipt of an application under rule 7, the competent authority shall, for the purpose of giving an opportunity to the parties of being heard, fix a date for hearing the parties and cause a notice (intimating such date) to be issued to them.

(2)

On the date fixed for hearing, or on such other date or dates to which the hearing may be adjourned, the competent authority shall hear the parties, examine the witnesses, if any, produced, and the documents filed, by them.

(3)

If either of the parties is absent on any date of hearing, the competent authority may proceed in his absence, and after hearing the party present, pass such order, as it thinks fit.]

8.

[Period of limitation for filing appeals

[Substituted by S.O. 1334, Dated 13.4.1973.]

.-An appeal under sub-section (7) of section 10 or section 20 of the Act shall be filed within a period of thirty days from the date of communication of the order appealed against.]

9.

[Time-limit for filing declaration under section 20-A(1) and fees therefor

[Inserted by S.O. 1334, dated 13.4.1973.]

-(1) A declaration by a tenant under sub-section (1) of section 20-A of the Act shall be filed within fifteen days from the date on which the tenant vacates the building or, as the case may be, on which he is evicted from the building.

(2)

The fees to be levied in respect of every such declaration shall be Rs. 5.

10.

Time-limit within which plans, estimates and other particulars are to be furnished under sub-section (2) of section 20-A

.-The time-limit for furnishing plans, estimates and other particulars by the owners of a building under sub-section (2) of section 20-A of the Act shall be ten days from the date of the order of the competent authority under that sub-section requiring the owner to furnish the same.

11.

Manner of communication of rent provisionally determined

.-The rent provisionally determined under sub-section (2) of section 20-A of the Act shall be communicated to the tenant and the owner in writing by registered post under acknowledgement due.

12.

Time-limit for intimation under sub-section (4) of section 20-A

.-The time-limit for intimation by a tenant under sub-section (4) of section 20-A of the Act shall be fifteen days from the date of receipt of the communication of the determination of provisional rent to him under sub-section (3) of that section.]

Schedule

FORM A

Notice Under Section 4(1) Of The Slum Areas (Improvement And Clearance) Act, 1956

To

.....
.....

Whereas I, the Competent Authority, am satisfied upon report from/other information in my possession, that the building (s)

[Specify the building(s)]

in

[Specify the area.]

declared to be a 'Slum Area' under section 3(1) of the Slum Areas (Improvement and Clearance) Act, 1956, is/are for human habitation in the following respects:

(1)

- (2)
(3)
(4)

Now, therefore, in pursuance of the powers conferred upon me under section 4 (1) of the said Act, I hereby require you, owner(s) of the building to execute the works of improvement mentioned in the Schedule below within 30 days of the receipt of this notice, as in my opinion these works will render the building(s) fit for human habitation.

In case you fail to comply with this notice, I shall get these works executed under section 5 of the Act and all expenses so incurred together with interest at the rate of six per cent. per annum from the date of demand shall be recovered from you as arrears of land revenue.

Competent Authority

Note.-The items not required should be struck out.

[FORM AA]

[Inserted by S.O. 1334, dated 13-4-1973.]

[Rule 6-A(1)]

Application For The Grant Of Permission To Erect Building In Slum Areas

To

The Competent Authority,

Slum Areas,

Delhi.

Dear Sir,

I/We am/are the owner(s) of the building bearing Municipal No. (s) Ward Nosituated at.....

2. It is requested that permission be granted under sub-section (1) of section 6-A of the Slum Areas (Improvement and Clearance) Act, 1956 for the erection of the said building.

3. The prescribed fee of Rs. 10 has been paid vide cash receipt Nodated the

4. The details of the proposed erection are given below:

(a)

.....

(b)

.....

(c)

.....

(d)

.....

(e)

.....

(f)

.....

(g)

.....

Yours faithfully,

.....

Signature(s) of the applicant(s)

Present address of the applicant(s)

.....

.....

.....

Dated

FORM B

Notice Under Section 7(1) Of The Slum Areas (Improvement And Clearance) Act, 1956

To

Whereas I..... the Competent Authority, am satisfied upon report from/other information in my possession, that the building(s).....

[Specify the building(s)]

in

[Specify the area.]

declared to be a 'Slum Area' under section 3(1) of the Slum Areas (Improvement and Clearance) Act, 1956 is/are unfit for human habitation and is/are not capable at a reasonable expense of being rendered so fit.

Now, therefore, in pursuance of the powers conferred upon me under section 7(1) of the said Act, I hereby call upon you an owner, lessee or mortgagee, or any other person having an interest in the building(s) to show cause within 15 days of the receipt of this notice as to why an order for demolition of the building(s) should not be made.

Competent Authority

FORM C

Notice Under The Provision To Section 12(1) Of The Slum Areas (Improvement And Clearance) Act, 1956

To

.....

.....

Whereas on representation from the Competent Authority under the Slum Areas (Improvement and Clearance) Act, 1956, it appears to the Central Government that in order to enable to the authority to execute work(s) of improvement in relation to

[Specify the building(s)]

in

[Specify the area]

declared to be a Slum Area to re-developdeclared to be a Clearance Area, it is necessary that the land(s) specified in the schedule below and adjoining/surrounded by such area should be acquired. Youas owner/any other person interested in the said land(s) are hereby called upon to show cause within 15 days of the receipt of this notice as to why it should not be acquired.

You may address your objections, if any, to the Secretary to the Government of India, Ministry of Health, New Delhi.

Dy. Secretary to the Govt. of India.

[FORM CC]

[Inserted by S.O. 1334, dated 13-4-1973.]

[Rule 7(1)(i)]

Application Under Section 19 Of The Slum Areas (Improvement And Clearance) Act, 1956 For Permission To Institute A Suit Or Proceeding For Eviction Of A Tenant

To

The Competent Authority,

Slum Areas,

Delhi

Dear Sir,

I/We am/are the owner(s) of the premises bearing Municipal No.(s).....

2.is/are tenant(s) in the said premises with effect from

3. It is requested that permission be granted under clause (a) of sub-section (1) of section 19 of the Slum Areas (Improvement and Clearance) Act, 1956 permitting the owner(s) of the said premises to institute a suit or proceeding for obtaining a decree or order for the eviction of the aforesaid tenant(s) from

4. The ground on which eviction of the tenant is sought are :

(a)

.....

(b)

.....

(c)

.....

(d)

5. The prescribed fee of Rs. 10 has been paid vide cash receipt No dated

6. The various addresses of the tenant(s) are given below:

(a)

(b)

(c)

(d)

Yours faithfully,

Signature(s) of the applicant(s)

Address

Dated

FORM CCC

[Rule 7(1)(ii)]

Application Under Section 19 Of The Slum Areas Act Improvement And Clearance) Act, 1956, For Permission To Evict A Tenant Under A Decree Or Order

To

The Competent Authority,

Slum Areas,

Delhi

Dear Sir,

I/We having obtained a decree or order for the evictionfrom
.....hereby apply for permission to execute such decree or order.

2. Copies of decree or order and judgment (if any) are enclosed.

3. The prescribed fee of Rs. 10 has been paid vide receipt No.(s) dated.....

4. The special grounds on which this permission is sought are:

(i)

(ii)

Yours faithfully,

Signature(s) of applicant(s)]

FORM D

Notice Under Section 27 Of The Slum Areas (Improvement And Clearance) Act, 1956

To

You are hereby given notice under section 27 of the Slum Areas (Improvement and Clearance) Act, 1956, that I
..... being duly authorised in this behalf by the Competent Authority, propose to enter with/without
assistants and workmen, the building/landunder your occupation/ownership
at.....onfor the purpose of.....

Signature of Officer

FORM E

Notice Under Section 29 Of The Slum Areas (Improvement And Clearance) Act, 1956

To

.....

.....

Whereas you are carrying on the trade of a dangerous or offensive trade in

[Specify the area.]

an area declared to be 'Slum Area' under section 3(1) of the Slum Areas (Improvement and Clearance) Act, 1956.

I..... the Competent Authority, hereby call upon you under section 29 of the said Act to show cause within 15 days of the receipt of this notice as to why an order directing you to remove the said trade from the said area should not be made.

Competent Authority

FORM F

Notice Under Section 33 Of The Slum Areas (Improvement And Clearance) Act, 1956

To

.....

.....

Whereas you have commenced/and carrying out/have completed the erection of a building consisting of..... in contravention of.....

The restrictions/conditions imposed under Section 10(7) of the Slum Areas (improvement and Clearance) Act, 1956 or the plan for the development of any clearance area or the notice/order/direction issue under given the said Act.

You are hereby informed that you may appear before the undersigned at on in this office and make your objection or representation, if any.

Competent Authority

Note.-The items not required should be struck down.

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